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## STATUTORY INSTRUMENTS

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**2019 No. 577**

# EXITING THE EUROPEAN UNION SANCTIONS

## The Counter-Terrorism (Sanctions) (EU Exit) Regulations 2019

*Made* - - - - *14th March 2019*

*Laid before Parliament* *15th March 2019*

*Coming into force in accordance with regulation 1(2)*

The Treasury<sup>M1</sup>, in exercise of the powers conferred by sections 1(1)(a) and (c) and (3), 3(1)(a), (b) (i) and (d)(i), 9(2)(a), 10(2)(a), (3) and (4), 11(2) to (9), 15(2)(a) and (b), (3)(a), (b), (d), (f), (g) and (h) and (6), 16(1)(a), (b), (c) and (e), (2) and (3)(a), 17(2)(a), (b)(i) and (c), (3) to (5) and (8), 21(1), 54(1) and (2), 56 and 62(4) and (5) of the Sanctions and Anti-Money Laundering Act 2018<sup>M2</sup>, and having decided, upon consideration of the matters set out in section 2(2) and 56(1) of that Act, that it is appropriate to do so, makes the following Regulations:

### Modifications etc. (not altering text)

- C1** [Regulations](#) extended (British overseas territories) (with modifications) (31.12.2020 immediately after both S.I. 2020/950 and S.I. 2020/1289 have come into force) by [The Counter-Terrorism \(Sanctions\) \(Overseas Territories\) Order 2020 \(S.I. 2020/1564\)](#), art. 2, Sch. 1, [Sch. 2](#); S.I. 2020/1514, regs. 17, 21

### Marginal Citations

- M1** The power to make regulations under Part 1 of the Sanctions and Anti-[Money Laundering Act 2018 \(c.13\)](#) is conferred on an “appropriate Minister”. Section 1(9)(b) of the Act defines an “appropriate Minister” as including the Treasury.
- M2** [2018 c.13](#).

## PART 1

### General

#### Citation and commencement

**1.—(1)** These Regulations may be cited as the Counter-Terrorism (Sanctions) (EU Exit) Regulations 2019.

***Changes to legislation:** The Counter-Terrorism (Sanctions) (EU Exit) Regulations 2019 is up to date with all changes known to be in force on or before 19 December 2024. There are changes that may be brought into force at a future date. Changes that have been made appear in the content and are referenced with annotations. (See end of Document for details) View outstanding changes*

(2) These Regulations come into force in accordance with regulations made by the Treasury under section 56 of the Act.

#### Commencement Information

**I1** Reg. 1 in force at 7.12.2020 by [S.I. 2020/1416](#), [reg. 2\(1\)\(a\)](#)

#### Interpretation

2. In these Regulations—

“the Act” means the Sanctions and Anti-Money Laundering Act 2018;

“arrangement” includes any agreement, understanding, scheme, transaction or series of transactions, whether or not legally enforceable (but see paragraph 12 of the Schedule for the meaning of that term in the Schedule);

“conduct” includes acts and omissions;

[<sup>F1</sup>“director disqualification licence” means a licence under regulation 19A;]

“document” includes information recorded in any form and, in relation to information recorded otherwise than in legible form, references to its production include producing a copy of the information in legible form;

“resolution 1373” means resolution 1373 (2001) adopted by the Security Council on 28 September 2001;

“Treasury licence” means a licence under regulation 19(1);

“United Kingdom person” has the same meaning as in section 21 of the Act.

#### Textual Amendments

**F1** Words in [reg. 2](#) inserted (5.6.2024) by [The Sanctions \(EU Exit\) \(Miscellaneous Amendments\) Regulations 2024 \(S.I. 2024/644\)](#), [regs. 1\(2\), 8\(2\)](#)

#### Commencement Information

**I2** Reg. 2 in force at 7.12.2020 by [S.I. 2020/1416](#), [reg. 2\(1\)\(b\)](#)

#### Application of prohibitions and requirements

3.—(1) A United Kingdom person may contravene a relevant prohibition by conduct wholly or partly outside the United Kingdom.

(2) Any person may contravene a relevant prohibition by conduct in the territorial sea.

(3) In paragraphs (1) and (2), a “relevant prohibition” means any prohibition imposed—

- (a) by regulation 9(2) (confidential information),
- (b) by Part 3 (Finance), or
- (c) by a condition of a Treasury licence.

(4) A United Kingdom person may comply, or fail to comply, with a relevant requirement by conduct wholly or partly outside the United Kingdom.

(5) Any person may comply, or fail to comply, with a relevant requirement by conduct in the territorial sea.

(6) In paragraphs (4) and (5), a “relevant requirement” means any requirement imposed—

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- (a) by or under Part 5 (Information), or by reason of a request made under a power conferred by that Part, or
  - (b) by a condition of a Treasury licence.
- (7) Nothing in this regulation is to be taken to prevent a relevant prohibition or a relevant requirement from applying to conduct (by any person) in the United Kingdom.

#### Commencement Information

**I3** Reg. 3 in force at 31.12.2020 by [S.I. 2020/1416](#), [reg. 2\(2\)](#)

#### Purposes

4.—(1) The regulations contained in this instrument that are made under section 1 of the Act have the following purposes—

- (a) compliance with the relevant UN obligations, and
  - (b) the additional purposes mentioned in paragraph (2).
- (2) Those additional purposes are—
- (a) the prevention of terrorism <sup>M3</sup> in the United Kingdom or elsewhere otherwise than by compliance with the relevant UN obligations; and
  - (b) the interests of national security.

(3) In this regulation, “the relevant UN obligations” means the obligations the United Kingdom has by virtue of paragraphs 1 and 2 of resolution 1373.

#### Commencement Information

**I4** Reg. 4 in force at 7.12.2020 by [S.I. 2020/1416](#), [reg. 2\(1\)\(c\)](#)

#### Marginal Citations

**M3** Section 62(1) of the Sanctions and Anti-Money Laundering Act 2018 defines “terrorism” as having the same meaning as in the [Terrorism Act 2000](#) (c. 11) (see [section 1\(1\) to \(4\)](#) of that Act).

## PART 2

### Designation of persons

#### Power to designate persons

5.—<sup>[F2(1)]</sup> The Treasury may designate persons <sup>[F3]</sup>the purposes of any of the following—

- (a) regulations 11 to 15 (asset-freeze etc.);
- (b) regulation 16A (director disqualification sanctions);
- (c) regulation 16B (immigration).]

<sup>[F4]</sup>(2) The Treasury may designate different persons for the purposes of different provisions mentioned in paragraph (1).]

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#### Textual Amendments

- F2** Reg. 5 renumbered as reg. 5(1) (5.6.2024) by [The Sanctions \(EU Exit\) \(Miscellaneous Amendments\) Regulations 2024 \(S.I. 2024/644\)](#), regs. 1(2), **8(3)(a)**
- F3** Words in reg. 5(1) substituted (5.6.2024) by [The Sanctions \(EU Exit\) \(Miscellaneous Amendments\) Regulations 2024 \(S.I. 2024/644\)](#), regs. 1(2), **8(3)(b)**
- F4** Reg. 5(2) inserted (5.6.2024) by [The Sanctions \(EU Exit\) \(Miscellaneous Amendments\) Regulations 2024 \(S.I. 2024/644\)](#), regs. 1(2), **8(3)(c)**

#### Commencement Information

- I5** Reg. 5 in force at 7.12.2020 by [S.I. 2020/1416](#), **reg. 2(1)(d)**

#### Designation criteria

- 6.—(1) The Treasury may not designate a person under regulation 5 unless the Treasury—
- (a) have reasonable grounds to suspect that that person is an involved person, and
  - (b) consider that the designation of that person is appropriate, having regard to—
    - (i) the purposes stated in regulation 4, and
    - (ii) the likely significant effects of the designation on that person (as they appear to the Treasury to be on the basis of the information that the Treasury have).
- (2) In this regulation, an “involved person” means a person who—
- (a) is or has been involved in terrorist activity,
  - (b) is owned or controlled directly or indirectly (within the meaning of regulation 7) by a person who is or has been so involved,
  - (c) is acting on behalf of or at the direction of a person who is or has been so involved, or
  - (d) is a member of, or associated with, a person who is or has been so involved.
- (3) Any reference in this regulation to being involved in terrorist activity includes being so involved in whatever way and wherever any actions constituting the involvement take place and in particular includes—
- (a) being responsible for, engaging in or providing support for, the commission, preparation or instigation of acts of terrorism;
  - (b) providing financial services, or making available funds or economic resources, for the purposes of terrorism;
  - (c) facilitating, promoting or encouraging terrorism;
  - (d) providing or receiving training for the purposes of terrorism;
  - (e) travelling or attempting to travel from or into the relevant territory for the purposes of terrorism;
  - (f) carrying out recruitment activities for a person involved in terrorism;
  - (g) being responsible for, engaging in, being complicit in, providing support for, or promoting, the abduction, enslavement, forced marriage or rape of, or sexual violence against, persons outside the relevant territory on behalf of, or in the name of, a person who is involved in terrorism;
  - (h) supporting or assisting any person who is known or believed by the person concerned to be involved in any activity mentioned in sub-paragraphs (a) to (g); or
  - (i) being involved in assisting the contravention or circumvention of any relevant provision.

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- (4) In this regulation, “carrying out recruitment activities” means—
- (a) soliciting another person to—
    - (i) become a member of a person, other than an individual, involved in terrorism, or
    - (ii) participate in any act by, in conjunction with, in the name of, on behalf of or in support of a person involved in terrorism;
  - (b) soliciting or otherwise procuring funds for the purpose of financing the travel of a person solicited as mentioned in sub-paragraph (a);
  - (c) organising, providing support for or otherwise facilitating the travel of a person solicited as mentioned in sub-paragraph (a).
- (5) In this regulation—
- being “associated with” a person includes pledging allegiance in whatever way to that person;
- “promoting or encouraging” terrorism includes a reference to a person who promotes or encourages terrorism within the meaning of section 3 of the Terrorism Act 2000 <sup>M4</sup>;
- “relevant provision” means—
- (a) any provision of Part 3;
  - (b) any provision of the law of a country other than the United Kingdom made for purposes corresponding to a purpose of any provision of Part 3;
- “relevant territory” means the United Kingdom and the territory of the Member States of the European Union.
- (6) Nothing in any sub-paragraph of paragraph (3) is to be taken to limit the meaning of any of the other sub-paragraphs of that paragraph.

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**Commencement Information**

**I6** Reg. 6 in force at 7.12.2020 by [S.I. 2020/1416](#), [reg. 2\(1\)\(e\)](#)

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**Marginal Citations**

**M4** [2000 c.11](#). Section 3 was amended by the [Terrorism Act 2006 \(c.11\)](#).

**Meaning of “owned or controlled directly or indirectly”**

7.—(1) A person who is not an individual (“C”) is “owned or controlled directly or indirectly” by another person (“P”) if either of the following two conditions is met (or both are met).

- (2) The first condition is that P—
- (a) holds directly or indirectly more than 50% of the shares in C,
  - (b) holds directly or indirectly more than 50% of the voting rights in C, or
  - (c) holds the right directly or indirectly to appoint or remove a majority of the board of directors of C.
- (3) The Schedule contains provision applying for the purpose of interpreting paragraph (2).
- (4) The second condition is that it is reasonable, having regard to all the circumstances, to expect that P would (if P chose to) be able, in most cases or in significant respects, by whatever means and, whether directly or indirectly, to achieve the result that affairs of C are conducted in accordance with P's wishes.

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## Commencement Information

**17** Reg. 7 in force at 7.12.2020 by [S.I. 2020/1416](#), [reg. 2\(1\)\(f\)](#)

## Notification and publicity where designation power used

**8.—**(1) Paragraph (2) applies where the Treasury—

- (a) have made a designation under regulation 5, or
- (b) have by virtue of section 22 of the Act varied or revoked a designation made under that regulation.

(2) The Treasury—

- (a) must without delay take such steps as are reasonably practicable to inform the designated person of the designation, variation or revocation, and
- (b) must take steps to publicise the designation, variation or revocation.

(3) The information given under paragraph (2)(a) where a designation is made must include a statement of reasons.

(4) In this regulation, a “statement of reasons”, in relation to a designation, means a brief statement of the matters that the Treasury know, or have reasonable grounds to suspect, in relation to the designated person which have led the Treasury to make the designation.

(5) Matters that would otherwise be required by paragraph (4) to be included in a statement of reasons may be excluded from it where the Treasury consider that they should be excluded—

- (a) in the interests of national security or international relations,
- (b) for reasons connected with the prevention or detection of serious crime in the United Kingdom or elsewhere, or
- (c) in the interests of justice.

(6) The steps taken under paragraph (2)(b) must—

- (a) unless one or more of the restricted publicity conditions is met, be steps to publicise generally—
  - (i) the designation, variation or revocation, and
  - (ii) in the case of a designation, the statement of reasons;
- (b) if one or more of those conditions is met, be steps to inform only such persons as the Treasury consider appropriate of the designation, variation or revocation and (in the case of a designation) of the contents of the statement of reasons.

(7) The “restricted publicity conditions” are as follows—

- (a) the designation is of a person believed by the Treasury to be an individual under the age of 18;
- (b) the Treasury consider that disclosure of the designation, variation or revocation should be restricted—
  - (i) in the interests of national security or international relations,
  - (ii) for reasons connected with the prevention or detection of serious crime in the United Kingdom or elsewhere, or
  - (iii) in the interests of justice.

(8) Paragraph (9) applies if—

- (a) when a designation is made, one or more of the restricted publicity conditions is met, but

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- (b) at any time when the designation has effect, it becomes the case that none of the restricted publicity conditions is met.
- (9) The Treasury must—
  - (a) take such steps as are reasonably practicable to inform the designated person that none of the restricted publicity conditions is now met, and
  - (b) take steps to publicise generally the designation and the statement of reasons relating to it.

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**Commencement Information**

**18** Reg. 8 in force at 7.12.2020 by [S.I. 2020/1416](#), [reg. 2\(1\)\(g\)](#)

**Confidential information in certain cases where designation power used**

**9.—(1)** Where the Treasury in accordance with regulation 8(6)(b) inform only certain persons of a designation, variation or revocation and (in the case of a designation) of the contents of the statement of reasons, the Treasury may specify that any of that information is to be treated as confidential.

- (2) A person (“P”) who—
  - (a) is provided with information that is to be treated as confidential in accordance with paragraph (1), or
  - (b) obtains such information,

must not, subject to paragraph (3), disclose it if P knows, or has reasonable cause to suspect, that the information is to be treated as confidential.

(3) The prohibition in paragraph (2) does not apply to any disclosure made by P with lawful authority.

- (4) For this purpose information is disclosed with lawful authority only if and to the extent that—
  - (a) the disclosure is by, or is authorised by, the Treasury,
  - (b) the disclosure is by or with the consent of the person who is or was the subject of the designation,
  - (c) the disclosure is necessary to give effect to a requirement imposed under or by virtue of these Regulations or any other enactment, or
  - (d) the disclosure is required, under rules of court, tribunal rules or a court or tribunal order, for the purposes of legal proceedings of any description.

(5) This regulation does not prevent the disclosure of information that is already, or has previously been, available to the public from other sources.

(6) A person who contravenes the prohibition in paragraph (2) commits an offence.

(7) The High Court (in Scotland, the Court of Session) may, on the application of—

- (a) the person who is the subject of the information, or
- (b) the Treasury,

grant an injunction (in Scotland, an interdict) to prevent a breach of the prohibition in paragraph (2).

(8) In paragraph (4)(c), “enactment” has the meaning given by section 54(6) of the Act.

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**Commencement Information**

**19** Reg. 9 in force at 31.12.2020 by [S.I. 2020/1416](#), [reg. 2\(2\)](#)

## PART 3

### Finance

#### Meaning of “designated person” in Part 3

**10.** In this Part, a “designated person” means a person who is designated under regulation 5 for the purposes of regulations 11 to 15 (asset-freeze etc.).

#### Commencement Information

**I10** Reg. 10 in force at 31.12.2020 by [S.I. 2020/1416](#), [reg. 2\(2\)](#)

#### Asset-freeze in relation to designated persons

**11.—(1)** A person (“P”) must not deal with funds or economic resources owned, held or controlled by a designated person if P knows, or has reasonable cause to suspect, that P is dealing with such funds or economic resources.

(2) Paragraph (1) is subject to Part 4 (Exceptions and licences).

(3) A person who contravenes the prohibition in paragraph (1) commits an offence.

(4) For the purposes of paragraph (1), a person “deals with” funds if the person—

- (a) uses, alters, moves, transfers or allows access to the funds,
- (b) deals with the funds in any other way that would result in any change in volume, amount, location, ownership, possession, character or destination, or
- (c) makes any other change, including portfolio management, that would enable use of the funds.

(5) For the purposes of paragraph (1), a person “deals with” economic resources if the person—

- (a) exchanges the economic resources for funds, goods or services, or
- (b) uses the economic resources in exchange for funds, goods or services (whether by pledging them as security or otherwise).

(6) The reference in paragraph (1) to funds or economic resources that are “owned, held or controlled” by a person includes, in particular, a reference to—

- (a) funds or economic resources in which the person has any legal or equitable interest, regardless of whether the interest is held jointly with any other person and regardless of whether any other person holds an interest in the funds or economic resources;
- (b) any tangible property (other than real property), or bearer security, that is comprised in funds or economic resources and is in the possession of the person.

(7) For the purposes of paragraph (1), funds or economic resources are to be treated as owned, held or controlled by a designated person if they are owned, held or controlled by a person who is owned or controlled directly or indirectly (within the meaning of regulation 7) by the designated person.

(8) For the avoidance of doubt, the reference in paragraph (1) to a designated person includes P if P is a designated person.

#### Commencement Information

**I11** Reg. 11 in force at 31.12.2020 by [S.I. 2020/1416](#), [reg. 2\(2\)](#)



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### **Making funds or financial services available to designated person**

**12.—**(1) A person (“P”) must not make funds or financial services available directly or indirectly to a designated person if P knows, or has reasonable cause to suspect, that P is making the funds or financial services so available.

(2) Paragraph (1) is subject to Part 4 (Exceptions and licences).

(3) A person who contravenes the prohibition in paragraph (1) commits an offence.

(4) The reference in paragraph (1) to making funds or financial services available indirectly to a designated person includes, in particular, a reference to making them available to a person who is owned or controlled directly or indirectly (within the meaning of regulation 7) by the designated person.

#### **Commencement Information**

**I12** Reg. 12 in force at 31.12.2020 by [S.I. 2020/1416](#), [reg. 2\(2\)](#)

### **Making funds or financial services available for benefit of designated person**

**13.—**(1) A person (“P”) must not make funds or financial services available to any person for the benefit of a designated person if P knows, or has reasonable cause to suspect, that P is making the funds or financial services so available.

(2) Paragraph (1) is subject to Part 4 (Exceptions and licences).

(3) A person who contravenes the prohibition in paragraph (1) commits an offence.

[<sup>F5</sup>(3A) The reference in paragraph (1) to making funds or financial services available to any person for the benefit of a designated person includes making funds or financial services available for the benefit of a person who is owned or controlled directly or indirectly (within the meaning of regulation 7) by the designated person (and references to designated person in paragraph (4) are to be read accordingly).]

(4) For the purposes of this regulation—

(a) funds are made available for the benefit of a designated person only if that person thereby obtains, or is able to obtain, a significant financial benefit, and

(b) “financial benefit” includes the discharge (or partial discharge) of a financial obligation for which the designated person is wholly or partly responsible.

#### **Textual Amendments**

**F5** [Reg. 13\(3A\)](#) inserted (5.12.2024) by [The Sanctions \(EU Exit\) \(Miscellaneous Amendments\) \(No. 2\) Regulations 2024 \(S.I. 2024/1157\)](#), [regs. 1\(2\), 10\(2\)](#)

#### **Commencement Information**

**I13** Reg. 13 not in force at made date, see [reg. 1\(2\)](#)

**I14** Reg. 13 in force at 31.12.2020 by [S.I. 2020/1416](#), [reg. 2\(2\)](#)

### **Making economic resources available to designated person**

**14.—**(1) A person (“P”) must not make economic resources available directly or indirectly to a designated person if P knows, or has reasonable cause to suspect—

(a) that P is making the economic resources so available, and

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- (b) that the designated person would be likely to exchange the economic resources for, or use them in exchange for, funds, goods or services.
- (2) Paragraph (1) is subject to Part 4 (Exceptions and licences).
- (3) A person who contravenes the prohibition in paragraph (1) commits an offence.
- (4) The reference in paragraph (1) to making economic resources available indirectly to a designated person includes, in particular, a reference to making them available to a person who is owned or controlled directly or indirectly (within the meaning of regulation 7) by the designated person.

#### Commencement Information

**I15** Reg. 14 in force at 31.12.2020 by [S.I. 2020/1416](#), [reg. 2\(2\)](#)

### Making economic resources available for benefit of designated person

**15.**—(1) A person (“P”) must not make economic resources available to any person for the benefit of a designated person if P knows, or has reasonable cause to suspect, that P is making the economic resources so available.

- (2) Paragraph (1) is subject to Part 4 (Exceptions and licences).
- (3) A person who contravenes the prohibition in paragraph (1) commits an offence.

[<sup>F6</sup>(3A) The reference in paragraph (1) to making economic resources available to any person for the benefit of a designated person includes making economic resources available for the benefit of a person who is owned or controlled directly or indirectly (within the meaning of regulation 7) by the designated person (and references to designated person in paragraph (4) are to be read accordingly).]

- (4) For the purposes of paragraph (1)—
  - (a) economic resources are made available for the benefit of a designated person only if that person thereby obtains, or is able to obtain, a significant financial benefit, and
  - (b) “financial benefit” includes the discharge (or partial discharge) of a financial obligation for which the designated person is wholly or partly responsible.

#### Textual Amendments

**F6** [Reg. 15\(3A\)](#) inserted (5.12.2024) by [The Sanctions \(EU Exit\) \(Miscellaneous Amendments\) \(No. 2\) Regulations 2024 \(S.I. 2024/1157\)](#), [regs. 1\(2\), 10\(3\)](#)

#### Commencement Information

**I16** Reg. 15 in force at 31.12.2020 by [S.I. 2020/1416](#), [reg. 2\(2\)](#)

### Circumventing etc. prohibitions

**16.**—(1) A person must not intentionally participate in activities knowing that the object or effect of them is, whether directly or indirectly—

- (a) to circumvent any of the prohibitions in regulations 11 to 15, or
- (b) to enable or facilitate the contravention of any such prohibition.
- (2) A person who contravenes the prohibition in paragraph (1) commits an offence.

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#### Commencement Information

**I17** Reg. 16 in force at 31.12.2020 by [S.I. 2020/1416](#), [reg. 2\(2\)](#)

## [<sup>F7</sup>PART 3A

### Director disqualification sanctions

#### Textual Amendments

**F7** [Pt. 3A](#) inserted (5.6.2024) by [The Sanctions \(EU Exit\) \(Miscellaneous Amendments\) Regulations 2024](#) (S.I. 2024/644), [regs. 1\(2\)](#), [8\(4\)](#)

#### Director disqualification sanctions

**16A.** A person who is designated under regulation 5 (power to designate persons) for the purposes of this regulation is a person subject to director disqualification sanctions for the purposes of—

- (a) section 11A of the Company Directors Disqualification Act 1986, and
- (b) Article 15A of the Company Directors Disqualification (Northern Ireland) Order 2002.]

## [<sup>F8</sup>PART 3B

### Immigration

#### Textual Amendments

**F8** [Pt. 3B](#) inserted (5.6.2024) by [The Sanctions \(EU Exit\) \(Miscellaneous Amendments\) Regulations 2024](#) (S.I. 2024/644), [regs. 1\(2\)](#), [8\(5\)](#)

#### Immigration

**16B.** A person who is designated under regulation 5 (power to designate persons) for the purposes of this regulation is an excluded person for the purposes of section 8B of the Immigration Act 1971.]

## PART 4

### Exceptions and licences

#### Finance: exceptions from prohibitions

**17.—(1)** The prohibition in regulation 11 (asset-freeze in relation to designated persons) is not contravened by an independent person (“P”) transferring to another person a legal or equitable interest in funds or economic resources where, immediately before the transfer, the interest—

- (a) is held by P, and
- (b) is not held jointly with the designated person.

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(2) In paragraph (1) “independent person” means a person who—

- (a) is not the designated person, and
- (b) is not owned or controlled directly or indirectly (within the meaning of regulation 7) by the designated person.

(3) The prohibitions in regulations 11 to 13 (asset-freeze in relation to, and making funds available to or for the benefit of, designated persons) are not contravened by a relevant institution crediting a frozen account with interest or other earnings due on the account.

(4) The prohibitions in regulations 12 and 13 (making funds available to, or for the benefit of, designated persons) are not contravened by a relevant institution crediting a frozen account where it receives funds transferred to that institution for crediting to that account.

(5) The prohibitions in regulations 12 and 13 are not contravened by the transfer of funds to a relevant institution for crediting to an account held or controlled (directly or indirectly) by a designated person, where those funds are transferred in discharge (or partial discharge) of an obligation which arose before the date on which the person became a designated person.

(6) The prohibitions in regulations 11 to 13 are not contravened in relation to a designated person (“P”) by a transfer of funds from account A to account B, where—

- (a) account A is with a relevant institution which carries on an excluded activity within the meaning of section 142D of the Financial Services and Markets Act 2000 <sup>M5</sup>,
- (b) account B is with a ring-fenced body within the meaning of section 142A of the Financial Services and Markets Act 2000 <sup>M6</sup>, and
- (c) accounts A and B are held or controlled (directly or indirectly) by P.

(7) The prohibition in regulation 13 is not contravened by the making of a payment which—

- (a) is a benefit under or by virtue of an enactment relating to social security (irrespective of the name or nature of the benefit), and
- (b) is made to a person who is not a designated person,

whether or not the payment is made in respect of a designated person.

(8) In this regulation—

“designated person” has the same meaning as it has in Part 3 (Finance);

“frozen account” means an account with a relevant institution which is held or controlled (directly or indirectly) by a designated person;

“relevant institution” means a person that has permission under Part 4A of the Financial Services and Markets Act 2000 <sup>M7</sup> (permission to carry on regulated activity).

(9) The definition of “relevant institution” in paragraph (8) is to be read with section 22 of the Financial Services and Markets Act 2000 <sup>M8</sup>, any relevant order under that section <sup>M9</sup> and Schedule 2 to that Act <sup>M10</sup>.

[<sup>F9</sup>(10) For the purposes of paragraphs (1)(b), (5) and (6) and the definition of “frozen account” in paragraph (8), references to a designated person are to be read as including a person who is owned or controlled directly or indirectly (within the meaning of regulation 7) by the designated person.

(11) When determining for the purposes of paragraph (5) when a person (“C”) who is owned or controlled directly or indirectly (within the meaning of regulation 7) by the designated person (“D”) became a designated person, C is to be treated as having become a designated person at the same time as D.]

**Changes to legislation:** The Counter-Terrorism (Sanctions) (EU Exit) Regulations 2019 is up to date with all changes known to be in force on or before 19 December 2024. There are changes that may be brought into force at a future date. Changes that have been made appear in the content and are referenced with annotations. (See end of Document for details) View outstanding changes

### Textual Amendments

- F9** Reg. 17(10)(11) inserted (5.12.2024) by [The Sanctions \(EU Exit\) \(Miscellaneous Amendments\) \(No. 2\) Regulations 2024 \(S.I. 2024/1157\)](#), regs. 1(2), **10(4)**

### Commencement Information

- I18** Reg. 17 in force at 31.12.2020 by [S.I. 2020/1416](#), **reg. 2(2)**

### Marginal Citations

- M5** [2000 c.8](#). Section 142D was inserted by section 4(1) of the [Financial Services \(Banking Reform\) Act 2013 \(c.33\)](#).
- M6** Section 142A was inserted by section 4(1) of the Financial Services (Banking Reform) Act 2013.
- M7** Part 4A was inserted by the [Financial Services Act 2012 \(c.21\)](#), **section 11(2)** and amended by [S.I. 2018/135](#). It is also amended by [S.I. 2018/1149](#). Those amendments have effect from exit day as defined in the [European Union \(Withdrawal\) Act 2018 \(c.16\)](#).
- M8** Section 22 was amended by the Financial Services Act 2012, section 7(1); section 27(4) of the [Financial Guidance and Claims Act 2018 \(c.10\)](#); and [S.I. 2018/135](#).
- M9** [S.I. 2001/544](#), as most recently amended by [S.I. 2018/1288](#) and prospectively amended by [S.I. 2018/1403](#).
- M10** Schedule 2 was amended by the [Regulation of Financial Services \(Land Transactions\) Act 2003 \(c.24\)](#), **section 1**; the [Dormant Bank and Building Society Accounts Act 2008 \(c.31\)](#), section 15, **Schedule 2**, paragraph 1; the Financial Services Act 2012, section 7(2) to (5) and section 8; [S.I. 2013/1881](#); section 27 of the [Financial Guidance and Claims Act 2018 \(c.16\)](#) and it is prospectively amended by [S.I. 2018/135](#).

## [<sup>F10</sup> Finance: exception from prohibitions for required payments

**17ZA.**—(1) This regulation applies to required payments within the meaning of paragraph (2).

(2) A required payment is a payment which—

(a) a designated person is required to make under or by virtue of any enactment to—

- (i) the registrar of companies,
- (ii) the Commissioners for His Majesty's Revenue and Customs,
- (iii) the Welsh Revenue Authority,
- (iv) Revenue Scotland,
- (v) the Financial Conduct Authority,
- (vi) the Secretary of State,
- (vii) the Welsh Ministers,
- (viii) the Department of Finance in Northern Ireland, or
- (ix) a local authority, and

(b) is not an excluded payment.

(3) The prohibitions in regulations 11 (asset-freeze in relation to designated persons) and 13 (making funds or financial services available for benefit of designated person) are not contravened by a person making a required payment.

(4) Where a required payment is made by a person other than a designated person, the prohibition in regulation 11 is not contravened by the designated person making a reimbursement payment to that person.

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**Changes to legislation:** The Counter-Terrorism (Sanctions) (EU Exit) Regulations 2019 is up to date with all changes known to be in force on or before 19 December 2024. There are changes that may be brought into force at a future date. Changes that have been made appear in the content and are referenced with annotations. (See end of Document for details) View outstanding changes

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(5) The reference in paragraph (3) to a person making a required payment includes a designated person, but only where they are making a required payment on their own behalf.

(6) The following payments are to be treated as payments which a designated person is required to make under or by virtue of an enactment for the purposes of this regulation, where made by a designated person on their own behalf or by a person, other than a designated person, on behalf of a designated person—

- (a) a payment to the Financial Conduct Authority of a levy imposed by the scheme manager of the Financial Services Compensation Scheme by virtue of section 213 of the Financial Services and Markets Act 2000 (the compensation scheme);
- (b) a payment to the Financial Conduct Authority which is collected by that Authority on behalf of the Financial Reporting Council Limited.

(7) For the purposes of this regulation, references to a designated person are to be read as including a person who is owned or controlled directly or indirectly (within the meaning of regulation 7) by the designated person.

(8) In this regulation—

“BID levy” means a levy that is imposed on those persons who are, in respect of particular business improvement district proposals, entitled to vote in accordance with section 39(3) of the Planning etc. (Scotland) Act 2006;

“business improvement district” has the meaning given in section 33 of the Planning etc. (Scotland) Act 2006;

“designated person” has the same meaning as it has in Part 3 (Finance);

“enactment” has the meaning given in section 54(6) of the Act;

“excluded payment” means, in relation to—

- (a) the registrar of companies, a payment of fees for—
  - (i) the incorporation of a firm;
  - (ii) the restoration of a firm to a register which is administered by the registrar;
- (b) the Financial Conduct Authority, a payment of fees for—
  - (i) an application for permission from, authorisation by, registration with or recognition from the Financial Conduct Authority which relates to the carrying on of any activity falling within any function of the Financial Conduct Authority;
  - (ii) an application for a variation of such permission, authorisation, registration or recognition;
  - (iii) an application for listing or for eligibility for listing;
  - (iv) an application for review or approval of a document relating to listing;
  - (v) an application for approval as a sponsor or primary information provider;
  - (vi) an application for review or approval of—
    - (aa) a document under the prospectus rules or the prospectus regulation;
    - (bb) listing particulars under section 79 of the Financial Services and Markets Act 2000 or supplementary listing particulars under section 81 of that Act;
- (c) the Secretary of State or the Welsh Ministers, a payment that a designated person is required to make under or by virtue of an enactment other than a payment under or by virtue of Part 3 of the Local Government Finance Act 1988;
- (d) the Department of Finance in Northern Ireland, a payment that a designated person is required to make under or by virtue of an enactment other than a payment under or by virtue of Part 2 of the Rates (Northern Ireland) Order 1977;

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- (e) a local authority, a payment that a designated person is required to make under or by virtue of an enactment other than a payment under or by virtue of—
- (i) Part 1 of the Local Government (Scotland) Act 1975;
  - (ii) Part 3 of the Local Government Finance Act 1988;
  - (iii) Parts 1 and 2 of the Local Government Finance Act 1992;
  - (iv) Part 4 of the Local Government Act 2003;
  - (v) Part 9 of the Planning etc. (Scotland) Act 2006;
  - (vi) the Business Rate Supplements Act 2009;
  - (vii) the Business Improvement Districts Act (Northern Ireland) 2013;

“firm” has the meaning given in section 1173(1) of the Companies Act 2006;

“listing” means being included in the official list maintained by the Financial Conduct Authority in accordance with Part 6 of the Financial Services and Markets Act 2000;

“local authority” means—

- (a) in relation to England—
  - (i) a district council;
  - (ii) a county council for any area for which there is no district council;
  - (iii) a London borough council;
  - (iv) the Common Council of the City of London in its capacity as a local authority;
  - (v) the Council of the Isles of Scilly;
- (b) in relation to Wales, a county council or a county borough council;
- (c) in relation to Scotland, a council constituted under section 2 of the Local Government etc. (Scotland) Act 1994 or a person appointed by such a council for the purposes of the administration, collection and recovery of a BID levy;
- (d) in relation to Northern Ireland, a district council;

“primary information provider” has the meaning given in section 89P(2) of the Financial Services and Markets Act 2000;

“prospectus regulation” means [Regulation \(EU\) 2017/1129](#) of the European Parliament and of the Council of 14 June 2017 on the prospectus to be published when securities are offered to the public or admitted to trading on a regulated market, and repealing [Directive 2003/71/EC](#);

“prospectus rules” has the meaning given in section 73A(4) of the Financial Services and Markets Act 2000;

“registrar of companies” has the meaning given in section 1060 of the Companies Act 2006 (the registrar);

“reimbursement payment” means a repayment from the designated person to the person who made a required payment which is of the same amount as that required payment;

“scheme manager” has the meaning given in section 212 of the Financial Services and Markets Act 2000;

“sponsor” has the meaning given in section 88(2) of the Financial Services and Markets Act 2000.]

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#### Textual Amendments

**F10** Reg. 17ZA inserted (5.12.2024) by [The Sanctions \(EU Exit\) \(Miscellaneous Amendments\) \(No. 2\) Regulations 2024 \(S.I. 2024/1157\)](#), regs. 1(2), **10(5)**

#### [<sup>F11</sup> **Finance: exception for authorised conduct in a relevant country**

**17A.**—(1) Where a person's conduct in a relevant country would, in the absence of this regulation, contravene a prohibition in any of regulations 11 to 15 (asset-freeze etc.) (“the relevant prohibition”), the relevant prohibition is not contravened if the conduct is authorised by a licence or other authorisation which is issued—

- (a) under the law of the relevant country, and
- (b) for the purpose of disapplying a prohibition in that jurisdiction which corresponds to the relevant prohibition.

(2) In this regulation—  
“relevant country” means—

- (a) any of the Channel Islands,
- (b) the Isle of Man, or
- (c) any British overseas territory.

(3) Nothing in this regulation affects the application of a prohibition in a case where it would be incompatible with a UN obligation for the prohibition or requirement not to apply.]

#### Textual Amendments

**F11** Reg. 17A inserted (31.12.2020 immediately after IP completion day) by [The Sanctions \(EU Exit\) \(Miscellaneous Amendments\) \(No.3\) Regulations 2020 \(S.I. 2020/950\)](#), regs. 1(2), **8(2)**; S.I. 2020/1514, reg. 17

#### **Exception for acts done for purposes of national security or prevention of serious crime**

**18.**—(1) Where an act would, in the absence of this paragraph, be prohibited by the prohibition in regulation 9(2) (confidentiality) or any prohibition in Part 3 (Finance), that prohibition does not apply to the act if the act is one which a responsible officer has determined would be in the interests of—

- (a) national security, or
- (b) the prevention or detection of serious crime in the United Kingdom or elsewhere.

(2) Where, in the absence of this paragraph, a thing would be required to be done under or by virtue of a provision of Part 5 (Information), that requirement does not apply if a responsible officer has determined that not doing the thing in question would be in the interests of—

- (a) national security, or
- (b) the prevention or detection of serious crime in the United Kingdom or elsewhere.

(3) In this regulation, “responsible officer” means a person in the service of the Crown or holding office under the Crown, acting in the course of that person's duty.

(4) Nothing in this regulation affects the application of a prohibition or requirement in a case where it would be incompatible with a UN obligation for the prohibition or requirement not to apply.



**Changes to legislation:** The Counter-Terrorism (Sanctions) (EU Exit) Regulations 2019 is up to date with all changes known to be in force on or before 19 December 2024. There are changes that may be brought into force at a future date. Changes that have been made appear in the content and are referenced with annotations. (See end of Document for details) View outstanding changes

### Commencement Information

**I19** Reg. 18 in force at 31.12.2020 by [S.I. 2020/1416](#), [reg. 2\(2\)](#)

### Treasury licences

**19.**—(1) The prohibitions in regulations 11 to 15 (asset-freeze etc.) do not apply to anything done under the authority of a licence issued by the Treasury under this paragraph.

<sup>F12</sup>(2) .....

<sup>F12</sup>(3) .....

<sup>F12</sup>(4) .....

<sup>F12</sup>(5) .....

### Textual Amendments

**F12** [Reg. 19\(2\)-\(5\)](#) omitted (3.10.2024) by virtue of [The Mali \(Sanctions\) \(EU Exit\) \(Amendment\) and Sanctions \(Miscellaneous Amendments\) Regulations 2024 \(S.I. 2024/946\)](#), [regs. 1\(2\), 4\(2\)](#)

### Commencement Information

**I20** Reg. 19 in force at 31.12.2020 by [S.I. 2020/1416](#), [reg. 2\(2\)](#)

### [<sup>F13</sup>Director disqualification licences

**19A.** The Secretary of State may issue a licence in relation to any person who is designated under regulation 5 for the purposes of regulation 16A (director disqualification sanctions) providing that the prohibitions in—

(a) section 11A(1) of the Company Directors Disqualification Act 1986, and

(b) Article 15A(1) of the Company Directors Disqualification (Northern Ireland) Order 2002,

do not apply to anything done under the authority of that licence.]

### Textual Amendments

**F13** [Reg. 19A](#) inserted (5.6.2024) by [The Sanctions \(EU Exit\) \(Miscellaneous Amendments\) Regulations 2024 \(S.I. 2024/644\)](#), [regs. 1\(2\), 8\(6\)](#)

### [<sup>F14</sup>Licences: general provisions

**19B.**—(1) This regulation applies in relation to Treasury licences and director disqualification licences.

(2) A licence must specify the acts authorised by it.

(3) A licence may be general or may authorise acts by a particular person or persons of a particular description.

(4) A licence may—

(a) contain conditions;

(b) be of indefinite duration or a defined duration.

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(5) A person who issues a licence may vary, revoke or suspend it at any time.

(6) A person who [<sup>F15</sup>, on the application of a person (“P”),][<sup>F16</sup>issues] a licence which authorises acts by a particular person [<sup>F17</sup>, or varies, revokes or suspends that licence,] must give written notice to [<sup>F18</sup>P] of the issue, variation, revocation or suspension of the licence.

(7) A person who issues, varies, revokes or suspends a general licence or a licence which authorises acts by persons of a particular description must take such steps as that person considers appropriate to publicise the issue, variation, revocation or suspension of the licence.]

#### Textual Amendments

- F14** Reg. 19B inserted (3.10.2024) by [The Mali \(Sanctions\) \(EU Exit\) \(Amendment\) and Sanctions \(Miscellaneous Amendments\) Regulations 2024 \(S.I. 2024/946\)](#), regs. 1(2), **4(3)**
- F15** Words in reg. 19B(6) inserted (5.12.2024) by [The Sanctions \(EU Exit\) \(Miscellaneous Amendments\) \(No. 2\) Regulations 2024 \(S.I. 2024/1157\)](#), regs. 1(2), **10(6)(a)**
- F16** Word in reg. 19B(6) substituted (5.12.2024) by [The Sanctions \(EU Exit\) \(Miscellaneous Amendments\) \(No. 2\) Regulations 2024 \(S.I. 2024/1157\)](#), regs. 1(2), **10(6)(b)**
- F17** Words in reg. 19B(6) inserted (5.12.2024) by [The Sanctions \(EU Exit\) \(Miscellaneous Amendments\) \(No. 2\) Regulations 2024 \(S.I. 2024/1157\)](#), regs. 1(2), **10(6)(c)**
- F18** Word in reg. 19B(6) substituted (5.12.2024) by [The Sanctions \(EU Exit\) \(Miscellaneous Amendments\) \(No. 2\) Regulations 2024 \(S.I. 2024/1157\)](#), regs. 1(2), **10(6)(d)**

#### Finance: licensing offences

**20.**—(1) A person (“P”) commits an offence if P knowingly or recklessly—

- (a) provides information that is false in a material respect, or
- (b) provides or produces a document that is not what it purports to be,

for the purpose of obtaining a Treasury licence (whether for P or anyone else).

(2) A person who purports to act under the authority of a Treasury licence but who fails to comply with any condition of the licence commits an offence.

#### Commencement Information

- I21** Reg. 20 in force at 31.12.2020 by [S.I. 2020/1416](#), **reg. 2(2)**

#### [<sup>F19</sup>Director disqualification: licensing offences

**20A.**—(1) A person (“P”) commits an offence if P knowingly or recklessly—

- (a) provides information that is false in a material respect, or
- (b) provides or produces a document that is not what it purports to be,

for the purpose of obtaining a director disqualification licence (whether for P or anyone else).

(2) A person who purports to act under the authority of a director disqualification licence but who fails to comply with any condition of the licence commits an offence.

(3) A licence in respect of which an offence under paragraph (1) has been committed is to be treated as void from the time at which it was issued.]

**Changes to legislation:** The Counter-Terrorism (Sanctions) (EU Exit) Regulations 2019 is up to date with all changes known to be in force on or before 19 December 2024. There are changes that may be brought into force at a future date. Changes that have been made appear in the content and are referenced with annotations. (See end of Document for details) View outstanding changes

#### Textual Amendments

**F19** Reg. 20A inserted (5.6.2024) by The Sanctions (EU Exit) (Miscellaneous Amendments) Regulations 2024 (S.I. 2024/644), regs. 1(2), 8(7)

#### [<sup>F20</sup>Section 8B(1) to (3) of Immigration Act 1971: directions

**20B.**—(1) The Secretary of State may direct that, in relation to any person within regulation 16B whose name is specified, or who is of a specified description, section 8B(1) and (2) of the Immigration Act 1971, or section 8B(3) of that Act, have effect subject to specified exceptions.

(2) A direction under this regulation—

- (a) may contain conditions;
- (b) must be of a defined duration (and that duration may be expressed in any way, including, for example, being expressed in a way such that the direction ceases to have effect on, or within a specified period after, the occurrence of a specified event).

(3) The Secretary of State may vary, revoke or suspend a direction under this regulation at any time.

(4) On the issue, variation, revocation or suspension of a direction under this regulation, the Secretary of State may take such steps as the Secretary of State considers appropriate to publicise the issue, variation, revocation or suspensions of the direction.

(5) In this regulation “specified” means specified in a direction under this regulation.]

#### Textual Amendments

**F20** Reg. 20B inserted (5.6.2024) by The Sanctions (EU Exit) (Miscellaneous Amendments) Regulations 2024 (S.I. 2024/644), regs. 1(2), 8(8)

## PART 5

### Information

#### Finance: reporting obligations

**21.**—(1) A relevant firm must inform the Treasury as soon as practicable if—

- (a) it knows, or has reasonable cause to suspect, that a person—
  - (i) is a designated person, or
  - (ii) has [<sup>F21</sup>breached a prohibition or failed to comply with an obligation] under any provision of Part 3 (Finance) or regulation 20 (finance: licensing offences), and
- (b) the information or other matter on which the knowledge or cause for suspicion is based came to it in the course of carrying on its business.

(2) Where a relevant firm informs the Treasury under paragraph (1), it must state—

- (a) the information or other matter on which the knowledge or suspicion is based, and
- (b) any information it holds about the person by which the person can be identified.

(3) Paragraph (4) applies if—

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- (a) a relevant firm informs the Treasury under paragraph (1) that it knows, or has reasonable cause to suspect, that a person is a designated person, and
  - (b) that person is a customer of the relevant firm.
- (4) The relevant firm must also state the nature and amount or quantity of any funds or economic resources held by it for the customer at the time when it first had the knowledge or suspicion.
- [<sup>F22</sup>(4A) Where a person (“P”) knows, or has reasonable cause to suspect, that P holds funds or economic resources owned, held or controlled by a designated person, P must by no later than 30th November in each calendar year provide a report to the Treasury as to the nature and amount or quantity of those funds or economic resources held by P as of 30th September in that calendar year.
- (4B) Where a report has been provided further to paragraph (4A) but as of 30th September in the following calendar year P no longer holds funds or economic resources owned, held or controlled by the designated person, P must by no later than 30th November in that calendar year report this to the Treasury.
- (4C) For the purposes of paragraphs (4A) and (4B), funds or economic resources are to be treated as owned, held or controlled by a designated person if they are owned, held or controlled by a person who is owned or controlled directly or indirectly (within the meaning of regulation 7) by the designated person.]
- (5) A relevant institution must inform the Treasury without delay if that institution—
- (a) credits a frozen account in accordance with regulation 17(4) (finance: exceptions from prohibitions), or
  - (b) transfers funds from a frozen account in accordance with regulation 17(6).
- (6) A person who fails to comply with a requirement in paragraph (1), (2) or (4) commits an offence.
- [<sup>F23</sup>(6A) A person commits an offence if that person, without reasonable excuse, fails to comply with a requirement in paragraph (4A) or (4B).]
- (7) In this regulation—
- “designated person” has the same meaning as it has in Part 3 (Finance);
  - “frozen account” has the same meaning as it has in regulation 17;
  - “relevant firm” is to be read in accordance with regulation 22;
  - “relevant institution” has the same meaning as it has in regulation 17.

#### Textual Amendments

- F21** Words in reg. 21(1)(a)(ii) substituted (5.12.2024) by [The Sanctions \(EU Exit\) \(Miscellaneous Amendments\) \(No. 2\) Regulations 2024 \(S.I. 2024/1157\)](#), regs. 1(2), **10(7)(a)**
- F22** Reg. 21(4A)-(4C) inserted (5.12.2024) by [The Sanctions \(EU Exit\) \(Miscellaneous Amendments\) \(No. 2\) Regulations 2024 \(S.I. 2024/1157\)](#), regs. 1(2), **10(7)(b)**
- F23** Reg. 21(6A) inserted (5.12.2024) by [The Sanctions \(EU Exit\) \(Miscellaneous Amendments\) \(No. 2\) Regulations 2024 \(S.I. 2024/1157\)](#), regs. 1(2), **10(7)(c)**

#### Commencement Information

- I22** Reg. 21 in force at 31.12.2020 by [S.I. 2020/1416](#), **reg. 2(2)**

#### [<sup>F24</sup>Finance: reporting obligations for required payments

**21A.—(1)** A designated person must inform the Treasury without delay if they make a required payment.

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(2) A person who makes a required payment on behalf of a designated person must inform the Treasury without delay that they have made the required payment.

(3) A person must inform the Treasury without delay if they receive a reimbursement payment.

(4) For the purposes of this regulation, references to a designated person are to be read as including a person who is owned or controlled directly or indirectly (within the meaning of regulation 7) by the designated person.

(5) In this regulation—

“designated person” has the meaning given in regulation 17ZA(8) (finance: exception from prohibitions for required payments);

“reimbursement payment” has the meaning given in regulation 17ZA(8);

“required payment” has the meaning given in regulation 17ZA(2).]

#### Textual Amendments

**F24** Reg. 21A inserted (5.12.2024) by [The Sanctions \(EU Exit\) \(Miscellaneous Amendments\) \(No. 2\) Regulations 2024 \(S.I. 2024/1157\)](#), regs. 1(2), **10(8)**

#### “Relevant firm”

**22.**—(1) The following are relevant firms for the purposes of regulation 21—

(a) a person that has permission under Part 4A of the Financial Services and Markets Act 2000 (permission to carry on regulated activity);

(b) an undertaking that by way of business—

(i) operates a currency exchange office,

(ii) transmits money (or any representation of monetary value) by any means, or

(iii) cashes cheques that are made payable to customers;

(c) a firm or sole practitioner that is—

(i) a statutory auditor within the meaning of Part 42 of the Companies Act 2006 (statutory auditors) <sup>M11</sup>, or

(ii) a local auditor within the meaning of section 4(1) of the Local Audit and Accountability Act 2014 (general requirements for audit) <sup>M12</sup>;

(d) a firm or sole practitioner that provides to other persons, by way of business—

(i) accountancy services,

(ii) legal or notarial services,

(iii) advice about tax affairs, or

(iv) trust or company services within the meaning of paragraph (2);

(e) a firm or sole practitioner that carries out, or whose employees carry out, estate agency work;

(f) the holder of a casino operating licence within the meaning given by section 65(2)(a) of the Gambling Act 2005 (nature of a licence) <sup>M13</sup>;

(g) a person engaged in the business of making, supplying, selling (including selling by auction) or exchanging—

(i) articles made from gold, silver, platinum or palladium, or

(ii) precious stones or pearls.

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[<sup>F25</sup>(h) a cryptoasset exchange provider;

(i) a custodian wallet provider.]

(2) In paragraph (1), “trust or company services” means any of the following services—

(a) forming companies or other legal persons;

(b) acting, or arranging for another person to act—

(i) as a director or secretary of a company,

(ii) as a partner of a partnership, or

(iii) in a similar capacity in relation to other legal persons;

(c) providing a registered office, business address, correspondence or administrative address or other related services for a company, partnership or any other legal person or arrangement;

(d) acting, or arranging for another person to act, as—

(i) a trustee of an express trust or similar legal arrangement, or

(ii) a nominee shareholder for a person.

(3) In paragraph (1)—

“estate agency work” is to be read in accordance with section 1 of the Estate Agents Act 1979 <sup>M14</sup>, but as if references in that section to disposing of or acquiring an interest in land included (despite anything in section 2 of that Act) references to disposing of or acquiring an estate or interest in land outside the United Kingdom where that estate or interest is capable of being owned or held as a separate interest;

“firm” means any entity that, whether or not a legal person, is not an individual, and includes a body corporate and a partnership or other unincorporated body.

[<sup>F26</sup>(3A) In paragraph (1), a “cryptoasset exchange provider” means a firm or sole practitioner that by way of business provides one or more of the following services, including where the firm or sole practitioner does so as creator or issuer of any of the cryptoassets involved—

(a) exchanging, or arranging or making arrangements with a view to the exchange of, cryptoassets for money or money for cryptoassets,

(b) exchanging, or arranging or making arrangements with a view to the exchange of, one cryptoasset for another, or

(c) operating a machine which utilises automated processes to exchange cryptoassets for money or money for cryptoassets.

(3B) In paragraph (1), a “custodian wallet provider” means a firm or sole practitioner that by way of business provides services to safeguard, or to safeguard and administer—

(a) cryptoassets on behalf of its customers, or

(b) private cryptographic keys on behalf of its customers in order to hold, store and transfer cryptoassets.

(3C) For the purposes of this regulation—

(a) “cryptoasset” means a cryptographically secured digital representation of value or contractual rights that uses a form of distributed ledger technology and can be transferred, stored or traded electronically;

(b) “money” means—

(i) money in sterling,

(ii) money in any other currency, or

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- (iii) money in any other medium of exchange,  
but does not include a cryptoasset; and
- (c) in sub-paragraphs (a) to (c) of paragraph (3A), “cryptoasset” includes a right to, or interest in, the cryptoasset.]
- (4) Paragraph (1)(a) and (b) is to be read with section 22 of the Financial Services and Markets Act 2000, any relevant order under that section and Schedule 2 to that Act.
- (5) For the purposes of regulation 21(1), information or another matter comes to a relevant firm “in the course of carrying on its business” if the information or other matter comes to the firm—
  - (a) in the case of a relevant firm within paragraph (1)(a), in the course of carrying on an activity in respect of which the permission mentioned in that provision is required;
  - (b) in the case of a relevant firm within paragraph (1)(c)(i), in the course of carrying out statutory audit work within the meaning of section 1210 of the Companies Act 2006 (meaning of “statutory auditor”);
  - (c) in the case of a relevant firm within paragraph (1)(c)(ii), in the course of carrying out an audit required by the Local Audit and Accountability Act 2014;
  - (d) in the case of a relevant firm within paragraph (1)(f), in the course of carrying on an activity in respect of which the licence mentioned in that provision is required;
  - (e) in the case of a relevant firm within any other provision of paragraph (1), in the course of carrying on an activity mentioned in that provision.

#### Textual Amendments

- F25** Reg. 22(1)(h)(i) inserted (30.8.2022) by [The Sanctions \(EU Exit\) \(Miscellaneous Amendments\) Regulations 2022 \(S.I. 2022/819\)](#), regs. 1(3)(g), **8(2)(a)**
- F26** Reg. 22(3A)-(3C) inserted (30.8.2022) by [The Sanctions \(EU Exit\) \(Miscellaneous Amendments\) Regulations 2022 \(S.I. 2022/819\)](#), regs. 1(3)(g), **8(2)(b)**

#### Commencement Information

- I23** Reg. 22 in force at 31.12.2020 by [S.I. 2020/1416](#), **reg. 2(2)**

#### Marginal Citations

- M11** 2006 c.46. Section 1210 was amended by [S.I. 2008/565](#); [S.I. 2008/567](#); [S.I. 2008/1950](#); [S.I. 2012/1809](#); [S.I. 2013/3115](#); [S.I. 2017/516](#) and [S.I. 2017/1164](#). It is also amended by [S.I. 2019/177](#). Those amendments have effect from exit day as defined in the [European Union \(Withdrawal\) Act 2018 \(c.16\)](#).
- M12** 2014 c.2.
- M13** 2005 c.19.
- M14** 1979 c.38, amended by paragraph 40 of Schedule 1 to the [Law Reform \(Miscellaneous Provisions\) \(Scotland\) Act 1985 \(c.73\)](#); paragraph 42 of Schedule 2 to the [Planning \(Consequential Provisions\) Act 1990 \(c.11\)](#); paragraph 28 of Schedule 2 to the [Planning \(Consequential Provisions\) \(Scotland\) Act 1997 \(c.11\)](#); section 70 of the [Enterprise and Regulatory Reform Act 2013 \(c.24\)](#); [S.I. 2001/1283](#); [S.I. 2000/121](#); and [S.I. 1991/2684](#).

### Finance: powers to request information

- 23.—**(1) The Treasury may request a designated person to provide information about—
- (a) funds or economic resources owned, held or controlled by or on behalf of the designated person, or

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- (b) any disposal of such funds or economic resources.
- (2) The Treasury may request a designated person to provide such information as the Treasury may reasonably require about expenditure—
  - (a) by the designated person, or
  - (b) for the benefit of the designated person.
- (3) For the purposes of paragraph (2), expenditure for the benefit of a designated person includes expenditure on the discharge (or partial discharge) of a financial obligation for which the designated person is wholly or partly responsible.
- (4) The power in paragraph (1) or (2) is exercisable only where the Treasury believe that it is necessary for the purpose of monitoring compliance with or detecting evasion of any provision of Part 3 (Finance).
- (5) The Treasury may request a person acting under a Treasury licence to provide information about—
  - (a) funds or economic resources dealt with under the licence, or
  - (b) funds, economic resources or financial services made available under the licence.
- (6) The Treasury may request a person to provide information within paragraph (7) if the Treasury believe that the person may be able to provide the information.
- (7) Information within this paragraph is such information as the Treasury may reasonably require for the purpose of—
  - (a) establishing for the purposes of any provision of Part 3 (Finance)—
    - (i) the nature and amount or quantity of any funds or economic resources owned, held or controlled by or on behalf of a designated person,
    - (ii) the nature and amount or quantity of any funds, economic resources or financial services made available directly or indirectly to, or for the benefit of, a designated person, or
    - (iii) the nature of any financial transactions entered into by a designated person;
  - (b) monitoring compliance with or detecting evasion of—
    - (i) any provision of Part 3 (Finance),
    - (ii) regulation 21 (finance: reporting obligations), or
    - (iii) any condition of a Treasury licence;
  - (c) detecting or obtaining evidence of the commission of an offence under Part 3 or regulation 20 (finance: licensing offences) or 21 (finance: reporting obligations).
- (8) The Treasury may specify the way in which, and the period within which, information is to be provided.
- (9) If no such period is specified, the information which has been requested must be provided within a reasonable time.
- (10) A request may include a continuing obligation to keep the Treasury informed as circumstances change, or on such regular basis as the Treasury may specify.
- (11) Information requested under this regulation may relate to any period of time during which a person is, or was, a designated person.
- (12) Information requested by virtue of paragraph (1)(b), (2) or (7)(a)(iii) may relate to any period before a person became a designated person (as well as, or instead of, any subsequent period).
- (13) Expressions used in this regulation have the same meaning as they have in Part 3.



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#### Commencement Information

**I24** Reg. 23 in force at 31.12.2020 by [S.I. 2020/1416](#), [reg. 2\(2\)](#)

### Finance: production of documents

**24.—**(1) A request under regulation 23 may include a request to produce specified documents or documents of a specified description.

(2) Where the Treasury request that documents be produced, the Treasury may—

- (a) take copies of or extracts from any document so produced,
- (b) request any person producing a document to give an explanation of it, and
- (c) where that person is a body corporate, partnership or unincorporated body other than a partnership, request any person who is—
  - (i) in the case of a partnership, a present or past partner or employee of the partnership, or
  - (ii) in any other case, a present or past officer or employee of the body concerned,

to give such an explanation.

(3) Where the Treasury request a designated person or a person acting under a Treasury licence to produce documents, that person must—

- (a) take reasonable steps to obtain the documents (if they are not already in the person's possession or control);
- (b) keep the documents under the person's possession or control (except for the purpose of providing them to the Treasury or as the Treasury may otherwise permit).

(4) In this regulation, “designated person” has the same meaning as it has in Part 3 (Finance).

#### Commencement Information

**I25** Reg. 24 in force at 31.12.2020 by [S.I. 2020/1416](#), [reg. 2\(2\)](#)

### Finance: information offences

**25.—**(1) A person commits an offence, if that person—

- (a) without reasonable excuse, refuses or fails within the time and in the manner specified (or, if no time has been specified, within a reasonable time) to comply with any request under regulation 23 (finance: powers to request information);
- (b) knowingly or recklessly gives any information, or produces any document, which is false in a material particular in response to such a request;
- (c) with intent to evade any provision of regulation 23 (finance: powers to request information) or 24 (finance: production of documents), destroys, mutilates, defaces, conceals or removes any document;
- (d) otherwise intentionally obstructs the Treasury in the exercise of their powers under regulation 23 (finance: powers to request information) or 24 (finance: production of documents).

(2) Where a person is convicted of an offence under this regulation, the court may make an order requiring that person, within such period as may be specified in the order, to comply with the request.

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## Commencement Information

**I26** Reg. 25 in force at 31.12.2020 by [S.I. 2020/1416](#), [reg. 2\(2\)](#)

## Disclosure of information

**26.—**(1) The Treasury may in accordance with this regulation, disclose—

- (a) any information obtained under or by virtue of Part 4 (Exceptions and licences) or this Part, or
- (b) any information held in connection with—
  - (i) anything done under or by virtue of Part 2 (Designation of persons) [<sup>F27</sup>, Part 3 (Finance) or Part 3A (Director disqualification sanctions)], or
  - (ii) any exception or licence under Part 4 or anything done in accordance with such an exception or under the authority of such a licence.

(2) Information referred to in paragraph (1) may be disclosed for, or in connection with, any of the following purposes—

- (a) the exercise of functions under these Regulations;
- (b) any purpose stated in regulation 4;
- (c) facilitating, monitoring or ensuring compliance with these Regulations;
- (d) taking any action with a view to instituting, or otherwise for the purposes of, any proceedings in the United Kingdom—
  - (i) for an offence under any provision of these Regulations, or
  - (ii) in relation to a monetary penalty under section 146 of the Policing and Crime Act 2017 (breach of financial sanctions legislation) <sup>M15</sup>;
- (e) taking any action with a view to instituting, or otherwise for the purposes of, any proceedings in any of the Channel Islands, the Isle of Man, or any British overseas territory, for an offence under a provision in any such jurisdiction that is similar to a provision of these Regulations;
- (f) compliance with an international obligation <sup>M16</sup>;
- (g) facilitating the exercise by an authority outside the United Kingdom or by an international organisation of functions which correspond to functions under these Regulations.

(3) Information referred to in paragraph (1) may be disclosed to the following persons—

- (a) a police officer;
- (b) any person holding or acting in any office under or in the service of—
  - (i) the Crown in right of the Government of the United Kingdom,
  - (ii) the Crown in right of the Scottish Government, the Northern Ireland Executive or the Welsh Government,
  - (iii) the States of Jersey, Guernsey or Alderney or the Chief Pleas of Sark,
  - (iv) the Government of the Isle of Man, or
  - (v) the Government of any British overseas territory;
- (c) any law officer of the Crown for Jersey, Guernsey or the Isle of Man;
- (d) the Scottish Legal Aid Board;

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- (e) the Financial Conduct Authority, the Prudential Regulation Authority, the Bank of England, the Jersey Financial Services Commission, the Guernsey Financial Services Commission or the Isle of Man Financial Services Authority;
  - (f) any other regulatory body (whether or not in the United Kingdom);
  - (g) any organ of the United Nations;
  - (h) the Council of the European Union, the European Commission or the External European Action Service;
  - (i) the Government of any country;
  - (j) any other person where the Treasury consider that it is appropriate to disclose the information.
- (4) Information referred to in paragraph (1) may be disclosed to any person with the consent of a person who, in their own right, is entitled to the information.
- (5) In paragraph (4), “in their own right” means not merely in the capacity as a servant or agent of another person.
- (6) In paragraph (1)(b)—
- (a) references to information include information obtained at a time when any provision of these Regulations is not in force, and
  - (b) references to a licence under Part 4 include—
    - (i) a licence which had been issued under that Part, and
    - (ii) a licence which is deemed to have been issued under that Part.

#### Textual Amendments

**F27** Words in [reg. 26\(1\)\(b\)\(i\)](#) substituted (5.6.2024) by [The Sanctions \(EU Exit\) \(Miscellaneous Amendments\) Regulations 2024 \(S.I. 2024/644\)](#), regs. 1(2), **8(9)**

#### Commencement Information

**I27** Reg. 26 in force at 31.12.2020 by [S.I. 2020/1416](#), **reg. 2(2)**

#### Marginal Citations

**M15** [2017 c.3.](#)

**M16** Section 1(8) of the Act defines an “international obligation” as an obligation of the United Kingdom created or arising by or under any international agreement.

### **[<sup>F28</sup>Finance: disclosure to the Treasury**

**26A.—**(1) A relevant public authority may disclose information to the Treasury if the disclosure is made for the purpose of enabling or assisting the Treasury to discharge any of its functions in connection with [<sup>F29</sup>any sanctions regulations contained in these Regulations].

(2) In this regulation—

“relevant public authority” means—

- (a) any person holding or acting in any office under or in the service of—
  - (i) the Crown in right of the Government of the United Kingdom,
  - (ii) the Crown in right of the Scottish Government, the Northern Ireland Executive or the Welsh Government,
- (b) any local authority,

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- (c) any police officer,
  - (d) the Financial Conduct Authority, the Prudential Regulation Authority, the Bank of England or any other regulatory body in the United Kingdom, or
  - (e) any other person exercising functions of a public nature;
- “local authority” means—
- (a) in relation to England—
    - (i) a county council,
    - (ii) a district council,
    - (iii) a London Borough council,
    - (iv) the Common Council of the City of London in its capacity as a local authority,
    - (v) the Council of the Isles of Scilly, or
    - (vi) an eligible parish council within the meaning of section 1(2) of the Local Government Act 2000,
  - (b) in relation to Wales, a county council, a county borough council or a community council,
  - (c) in relation to Scotland, a council constituted under section 2 of the Local Government etc. (Scotland) Act 1994, or
  - (d) in relation to Northern Ireland, a district council.]

#### Textual Amendments

**F28** Reg. 26A inserted (9.8.2022) by [The Sanctions \(EU Exit\) \(Miscellaneous Amendments\) Regulations 2022 \(S.I. 2022/819\)](#), regs. 1(2), **8(3)**

**F29** Words in [reg. 26A\(1\)](#) substituted (5.12.2024) by [The Sanctions \(EU Exit\) \(Miscellaneous Amendments\) \(No. 2\) Regulations 2024 \(S.I. 2024/1157\)](#), regs. 1(2), **10(10)**

#### Part 5: supplementary

**27.—**(1) A disclosure of information under regulation 26 [<sup>F30</sup>or 26A] does not breach any restriction on such disclosure imposed by statute or otherwise.

(2) But nothing in [<sup>F31</sup>those regulations] authorises a disclosure that—

- (a) contravenes the data protection legislation, or
- (b) is prohibited by any of Parts 1 to 7 or Chapter 1 of Part 9 of the Investigatory Powers Act 2016 <sup>M17</sup>.

(3) Nothing in this Part is to be read as requiring a person who has acted or is acting as counsel or solicitor for any person to disclose any privileged information in their possession in that capacity.

(4) [<sup>F32</sup>Regulations 26 and 26A do] not limit the circumstances in which information may be disclosed apart from [<sup>F33</sup>those regulations].

(5) Nothing in this Part limits any conditions which may be contained in a Treasury licence.

(6) In this regulation—

“the data protection legislation” has the same meaning as in the Data Protection Act 2018 (see section 3 of that Act) <sup>M18</sup>;

“privileged information” means information with respect to which a claim to legal professional privilege (in Scotland, to confidentiality of communications) could be maintained in legal proceedings.

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### Textual Amendments

- F30** Words in [reg. 27\(1\)](#) inserted (9.8.2022) by [The Sanctions \(EU Exit\) \(Miscellaneous Amendments\) Regulations 2022 \(S.I. 2022/819\)](#), regs. 1(2), [8\(4\)\(a\)](#)
- F31** Words in [reg. 27\(2\)](#) substituted (9.8.2022) by [The Sanctions \(EU Exit\) \(Miscellaneous Amendments\) Regulations 2022 \(S.I. 2022/819\)](#), regs. 1(2), [8\(4\)\(b\)](#)
- F32** Words in [reg. 27\(4\)](#) substituted (9.8.2022) by [The Sanctions \(EU Exit\) \(Miscellaneous Amendments\) Regulations 2022 \(S.I. 2022/819\)](#), regs. 1(2), [8\(4\)\(c\)\(i\)](#)
- F33** Words in [reg. 27\(4\)](#) substituted (9.8.2022) by [The Sanctions \(EU Exit\) \(Miscellaneous Amendments\) Regulations 2022 \(S.I. 2022/819\)](#), regs. 1(2), [8\(4\)\(c\)\(ii\)](#)

### Commencement Information

- I28** Reg. 27 in force at 31.12.2020 by [S.I. 2020/1416](#), [reg. 2\(2\)](#)

### Marginal Citations

- M17** [2016 c.25](#). Amendments have been made by the [Policing and Crime Act 2017 \(c.3\)](#), [Schedule 9\(3\)](#), paragraph 74; the [Data Protection Act 2018 \(c.12\)](#), [Schedule 19\(1\)](#), paragraphs 198-203; [S.I. 2018/652](#) and [S.I. 2018/1123](#). Savings provisions are made by [S.I. 2017/859](#). Chapter 1 of Part 9 has been amended by regulation 6 of the [Investigatory Powers Act 2016 \(Commencement No. 3 and Transitory, Transitional and Savings Provisions\) Regulations 2017 \(S.I. 2017/859\)](#).
- M18** [2018 c.12](#). There are amendments to this Act that are not relevant to these Regulations.

## PART 6

### Enforcement

#### Penalties for offences

**28.—(1)** A person who commits an offence under any provision of Part 3 (Finance) or regulation 20 (finance: licensing offences), is liable—

- on summary conviction in England and Wales, to imprisonment for a term not exceeding [<sup>F34</sup>the general limit in a magistrates' court] or a fine (or both);
- on summary conviction in Scotland, to imprisonment for a term not exceeding 12 months or a fine not exceeding the statutory maximum (or both);
- on summary conviction in Northern Ireland, to imprisonment for a term not exceeding 6 months or a fine not exceeding the statutory maximum (or both);
- on conviction on indictment, to imprisonment for a term not exceeding 7 years or a fine (or both).

**(2)** A person who commits an offence under regulation 9(6) (confidentiality) [<sup>F35</sup>or 20A (director disqualification: licensing offences)] is liable—

- on summary conviction in England and Wales, to imprisonment for a term not exceeding [<sup>F36</sup>the general limit in a magistrates' court] or a fine (or both);
- on summary conviction in Scotland, to imprisonment for a term not exceeding 12 months or a fine not exceeding the statutory maximum (or both);
- on summary conviction in Northern Ireland, to imprisonment for a term not exceeding 6 months or a fine not exceeding the statutory maximum (or both);

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- (d) on conviction on indictment, to imprisonment for a term not exceeding 2 years or a fine (or both).
- (3) A person who commits an offence under regulation 21(6) or 25 (information offences in connection with Part 3) is liable—
- (a) on summary conviction in England and Wales, to imprisonment for a term not exceeding 6 months or a fine (or both);
  - (b) on summary conviction in Scotland, to imprisonment for a term not exceeding 6 months or a fine not exceeding level 5 on the standard scale (or both);
  - (c) on summary conviction in Northern Ireland, to imprisonment for a term not exceeding 6 months or a fine not exceeding level 5 on the standard scale (or both).
- (4) In relation to an offence committed before [<sup>F37</sup>2nd May 2022] the reference in each of paragraphs (1)(a) and (2)(a) to [<sup>F38</sup>the general limit in a magistrates' court] is to be read as a reference to 6 months.

#### Textual Amendments

- F34** Words in [reg. 28\(1\)\(a\)](#) substituted (7.2.2023 at 12.00 p.m.) by [The Judicial Review and Courts Act 2022 \(Magistrates' Court Sentencing Powers\) Regulations 2023 \(S.I. 2023/149\)](#), regs. 1(2), 2(2), [Sch. Pt. 2](#)
- F35** Words in [reg. 28\(2\)](#) inserted (5.6.2024) by [The Sanctions \(EU Exit\) \(Miscellaneous Amendments\) Regulations 2024 \(S.I. 2024/644\)](#), regs. 1(2), [8\(10\)](#)
- F36** Words in [reg. 28\(2\)\(a\)](#) substituted (7.2.2023 at 12.00 p.m.) by [The Judicial Review and Courts Act 2022 \(Magistrates' Court Sentencing Powers\) Regulations 2023 \(S.I. 2023/149\)](#), regs. 1(2), 2(2), [Sch. Pt. 2](#)
- F37** Words in [reg. 28\(4\)](#) substituted (28.4.2022) by [The Criminal Justice Act 2003 \(Commencement No. 33\) and Sentencing Act 2020 \(Commencement No. 2\) Regulations 2022 \(S.I. 2022/500\)](#), regs. 1(2), 5(2), [Sch. Pt. 2](#)
- F38** Words in [reg. 28\(4\)](#) substituted (7.2.2023 at 12.00 p.m.) by [The Judicial Review and Courts Act 2022 \(Magistrates' Court Sentencing Powers\) Regulations 2023 \(S.I. 2023/149\)](#), regs. 1(2), 2(2), [Sch. Pt. 2](#)

#### Commencement Information

- I29** Reg. 28 in force at 31.12.2020 by [S.I. 2020/1416](#), [reg. 2\(2\)](#)

#### Liability of officers of bodies corporate etc

**29.—**(1) Where an offence under these Regulations, committed by a body corporate—

- (a) is committed with the consent or connivance of any director, manager, secretary or other similar officer of the body corporate, or any person who was purporting to act in any such capacity, or
- (b) is attributable to any neglect on the part of any such person,

that person as well as the body corporate is guilty of the offence and is liable to be proceeded against and punished accordingly.

(2) In paragraph (1), “director”, in relation to a body corporate whose affairs are managed by its members, means a member of the body corporate.

(3) Paragraph (1) also applies in relation to a body that is not a body corporate, with the substitution for the reference to a director of the body of a reference—

- (a) in the case of a partnership, to a partner;
- (b) in the case of an unincorporated body other than a partnership—

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- (i) where the body's affairs are managed by its members, to a member of the body;
- (ii) in any other case, to a member of the governing body.

#### Commencement Information

**I30** Reg. 29 in force at 31.12.2020 by [S.I. 2020/1416](#), [reg. 2\(2\)](#)

### Jurisdiction to try offences

**30.**—(1) Where an offence under Part 3 (Finance), regulation 9(6) (confidentiality), regulation 20 (finance: licensing offences), regulation 21(6) (finance: reporting obligations) or regulation 25 (information offences in connection with Part 3) is committed in the United Kingdom—

- (a) proceedings for the offence may be taken at any place in the United Kingdom, and
- (b) the offence may for all incidental purposes be treated as having been committed at any such place.

(2) Where an offence under these Regulations is committed outside the United Kingdom—

- (a) proceedings for the offence may be taken at any place in the United Kingdom, and
- (b) the offence may for all incidental purposes be treated as having been committed at any such place.

(3) In the application of paragraph (2) to Scotland, any such proceedings against a person may be taken—

- (a) in any sheriff court district in which the person is apprehended or is in custody, or
- (b) in such sheriff court district as the Lord Advocate may determine.

(4) In paragraph (3), “sheriff court district” is to be read in accordance with the Criminal Procedure (Scotland) Act 1995 (see section 307(1) of that Act) <sup>M19</sup>.

#### Commencement Information

**I31** Reg. 30 in force at 31.12.2020 by [S.I. 2020/1416](#), [reg. 2\(2\)](#)

#### Marginal Citations

**M19** 1995 c.46.

### Procedure for offences by unincorporated bodies

**31.**—(1) Paragraphs (2) and (3) apply if it is alleged that an offence under these Regulations has been committed by an unincorporated body (as opposed to by a member of the body).

(2) Proceedings in England and Wales or Northern Ireland for such an offence must be brought against the body in its own name.

(3) For the purposes of proceedings, for such an offence brought against an unincorporated body—

- (a) rules of court relating to the service of documents have effect as if the body were a body corporate;
- (b) the following provisions apply as they apply in relation to a body corporate—

- (i) section 33 of the Criminal Justice Act 1925 <sup>M20</sup> and Schedule 3 to the Magistrates' Courts Act 1980 <sup>M21</sup>;



*Changes to legislation: The Counter-Terrorism (Sanctions) (EU Exit) Regulations 2019 is up to date with all changes known to be in force on or before 19 December 2024. There are changes that may be brought into force at a future date. Changes that have been made appear in the content and are referenced with annotations. (See end of Document for details) View outstanding changes*

(ii) section 18 of the Criminal Justice Act (Northern Ireland) 1945 <sup>M22</sup> and Article 166 of, and Schedule 4 to, the Magistrates' Courts (Northern Ireland) Order 1981 <sup>M23</sup>.

(4) A fine imposed on an unincorporated body on its conviction of an offence under these Regulations is to be paid out of the funds of the body.

#### Commencement Information

**I32** Reg. 31 in force at 31.12.2020 by [S.I. 2020/1416](#), [reg. 2\(2\)](#)

#### Marginal Citations

**M20** [1925 c.86](#), as amended by the [Statute Law \(Repeals\) Act 2004 \(c.14\)](#), [section 1\(1\)](#) and Schedule 1, Part 17. Other amendments have been made to section 33 that are not relevant to these Regulations.

**M21** [1980 c.43](#). Amendments have been made to Schedule 3 that are not relevant to these Regulations.

**M22** [1945 c.15 \(N.I.\)](#).

**M23** [S.I. 1981/1675 \(N.I. 26\)](#).

#### Time limit for proceedings for summary offences

**32.**—(1) Proceedings for an offence under these Regulations which is triable only summarily may be brought within the period of 12 months beginning with the date on which evidence sufficient in the opinion of the prosecutor to justify the proceedings comes to the prosecutor's knowledge.

(2) But such proceedings may not be brought by virtue of paragraph (1) more than 3 years after the commission of the offence.

(3) A certificate signed by the prosecutor as to the date on which the evidence in question came to the prosecutor's knowledge is conclusive evidence of the date on which it did so; and a certificate to that effect and purporting to be so signed is to be treated as being so signed unless the contrary is proved.

(4) In relation to proceedings in Scotland—

(a) section 136(3) of the Criminal Procedure (Scotland) Act 1995 (date of commencement of summary proceedings) applies for the purposes of this regulation as it applies for the purposes of that section, and

(b) references in this regulation to the prosecutor are to be treated as references to the Lord Advocate.

#### Commencement Information

**I33** Reg. 32 in force at 31.12.2020 by [S.I. 2020/1416](#), [reg. 2\(2\)](#)

#### Application of Chapter 1 of Part 2 of Serious Organised Crime and Police Act 2005

**33.** Chapter 1 of Part 2 of the Serious Organised Crime and Police Act 2005 (investigatory powers) <sup>M24</sup> applies to any offence under Part 3 (Finance) and regulation 20 (finance: licensing offences).

#### Commencement Information

**I34** Reg. 33 in force at 31.12.2020 by [S.I. 2020/1416](#), [reg. 2\(2\)](#)



**Changes to legislation:** The Counter-Terrorism (Sanctions) (EU Exit) Regulations 2019 is up to date with all changes known to be in force on or before 19 December 2024. There are changes that may be brought into force at a future date. Changes that have been made appear in the content and are referenced with annotations. (See end of Document for details) View outstanding changes

### Marginal Citations

**M24** 2005 c.15. Chapter 1 of Part 2 has been amended by the [Terrorism Act 2006 \(c.11\)](#), [section 33\(3\)](#) and (4); the [Northern Ireland \(Miscellaneous Provisions\) Act 2006 \(c.33\)](#), [sections 26\(2\)](#) and 30(2) and Schedules 3 and 5; the [Bribery Act 2010 \(c.23\)](#), [section 17\(2\)](#) and Schedule 1; the [Criminal Justice and Licensing \(Scotland\) Act 2010 \(asp 13\)](#), [section 203](#) and Schedule 7, para 77; the [Crime and Courts Act 2013 \(c.22\)](#), [section 17\(4\)](#) and Schedule 8, paragraphs 157 and 159; the [Criminal Finances Act 2017 \(c.22\)](#), [section 51\(1\)](#); the Act, section 59(4) and Schedule 3, paragraph 4; and S.I. 2014/823.

## PART 7

### Supplementary and final provision

#### Notices

**34.—**(1) This regulation applies in relation to a notice required by regulation 19 (treasury licences) [<sup>F39</sup>or regulation 19A (director disqualification licences)] to be given to a person.

(2) The notice may be given to an individual—

- (a) by delivering it to the individual,
- (b) by sending it to the individual by post addressed to the individual at his or her usual or last-known place of residence or business, or
- (c) by leaving it for the individual at that place.

(3) The notice may be given to a person other than an individual—

- (a) by sending it by post to the proper officer of the body at its principal office, or
- (b) by addressing it to the proper officer of the body and leaving it at that office.

(4) The notice may be given to the person by other means, including by electronic means, with the person's consent.

(5) In this regulation, the reference in paragraph (3) to a “principal office”—

- (a) in relation to a registered company, is to be read as a reference to the company's registered office;
- (b) in relation to a body incorporated or constituted under the law of a country other than the United Kingdom, includes a reference to the body's principal office in the United Kingdom (if any).

(6) In this regulation—

“proper officer”—

- (a) in relation to a body other than a partnership, means the secretary or other executive officer charged with the conduct of the body's general affairs; and
- (b) in relation to a partnership, means a partner or a person who has the control or management of the partnership business;

“registered company” means a company registered under the enactments relating to companies for the time being in force in the United Kingdom.

### Textual Amendments

**F39** Words in [reg. 34](#) inserted (5.6.2024) by [The Sanctions \(EU Exit\) \(Miscellaneous Amendments\) Regulations 2024 \(S.I. 2024/644\)](#), [regs. 1\(2\)](#), [8\(11\)](#)

*Changes to legislation: The Counter-Terrorism (Sanctions) (EU Exit) Regulations 2019 is up to date with all changes known to be in force on or before 19 December 2024. There are changes that may be brought into force at a future date. Changes that have been made appear in the content and are referenced with annotations. (See end of Document for details) View outstanding changes*

### Commencement Information

**I35** Reg. 34 in force at 31.12.2020 by [S.I. 2020/1416](#), [reg. 2\(2\)](#)

### [<sup>F40</sup>Amendment of the Charities Act 2011

**34A.**—(1) The Charities Act 2011 is amended as set out in paragraph (2).

(2) In section 178(1), in Case J, after paragraph (b) insert—

“(c) regulations 11 to 15 of the Counter-Terrorism (Sanctions) (EU Exit) Regulations 2019 (S.I. 2019/577).”

### Textual Amendments

**F40** Regs. 34A-34E inserted (31.12.2020 immediately after IP completion day) by [The Sanctions \(EU Exit\) \(Consequential Provisions\) \(Amendment\) Regulations 2020](#) (S.I. 2020/1289), [regs. 1\(2\), 4\(2\)](#); S.I. 2020/1514, [reg. 21](#)

### Amendment of the Sanctions and Anti-Money Laundering Act 2018

**34B.**—(1) The Sanctions and Anti-Money Laundering Act 2018 is amended as set out in paragraph (2).

(2) In section 49(3), in the definition of “terrorist financing”, after paragraph (c) insert—

“(ca) any of regulations 11 to 16 of the Counter-Terrorism (Sanctions) (EU Exit) Regulations 2019 (S.I. 2019/577).”

### Textual Amendments

**F40** Regs. 34A-34E inserted (31.12.2020 immediately after IP completion day) by [The Sanctions \(EU Exit\) \(Consequential Provisions\) \(Amendment\) Regulations 2020](#) (S.I. 2020/1289), [regs. 1\(2\), 4\(2\)](#); S.I. 2020/1514, [reg. 21](#)

### Amendment of the Electronic Money Regulations 2011

**34C.**—(1) The Electronic Money Regulations 2011 are amended as set out in paragraph (2).

(2) In regulation 13(8), after paragraph (c) insert—

“(ca) an offence under Part 3, 4 or 5 of the Counter-Terrorism (Sanctions) (EU Exit) Regulations 2019;”.

### Textual Amendments

**F40** Regs. 34A-34E inserted (31.12.2020 immediately after IP completion day) by [The Sanctions \(EU Exit\) \(Consequential Provisions\) \(Amendment\) Regulations 2020](#) (S.I. 2020/1289), [regs. 1\(2\), 4\(2\)](#); S.I. 2020/1514, [reg. 21](#)

### Amendment of the Money Laundering, Terrorist Financing and Transfer of Funds (Information on the Payer) Regulations 2017

**34D.**—(1) The Money Laundering, Terrorist Financing and Transfer of Funds (Information on the Payer) Regulations 2017 are amended as set out in paragraph (2).

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**Changes to legislation:** The Counter-Terrorism (Sanctions) (EU Exit) Regulations 2019 is up to date with all changes known to be in force on or before 19 December 2024. There are changes that may be brought into force at a future date. Changes that have been made appear in the content and are referenced with annotations. (See end of Document for details) View outstanding changes

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- (2) In regulation 3(1), in the definition of “terrorist financing”, after paragraph (c) insert—
- “(ca) any of regulations 11 to 16 of the Counter-Terrorism (Sanctions) (EU Exit) Regulations 2019;”.

#### Textual Amendments

**F40** Regs. 34A-34E inserted (31.12.2020 immediately after IP completion day) by [The Sanctions \(EU Exit\) \(Consequential Provisions\) \(Amendment\) Regulations 2020 \(S.I. 2020/1289\)](#), regs. 1(2), **4(2)**; S.I. 2020/1514, reg. 21

### Amendment of the Payment Services Regulations 2017

- 34E.**—(1) The Payment Services Regulations 2017 are amended as set out in paragraph (2).
- (2) In regulation 14(5), after paragraph (c) insert—
- “(ca) an offence under any of regulations 11 to 16 of the Counter-Terrorism (Sanctions) (EU Exit) Regulations 2019;”.]

#### Textual Amendments

**F40** Regs. 34A-34E inserted (31.12.2020 immediately after IP completion day) by [The Sanctions \(EU Exit\) \(Consequential Provisions\) \(Amendment\) Regulations 2020 \(S.I. 2020/1289\)](#), regs. 1(2), **4(2)**; S.I. 2020/1514, reg. 21

### Transitional provision: Treasury licences

**35.**—(1) Paragraphs (2) to (4) apply to a licence (whether general or granted to a category of persons or to a particular person) which—

- (a) was granted by the Treasury under section 17 of the Terrorist Asset-Freezing etc. Act 2010 <sup>M25</sup> authorising conduct in relation to a person (“P”) which would be prohibited under that Act,
- (b) was in effect immediately before the relevant date, and
- (c) authorises conduct which would (on and after the relevant date, and in the absence of paragraphs (2) to (4)) be prohibited under Part 3 (Finance),

and such a licence is referred to in this regulation as “an existing financial sanctions licence”.

(2) An existing financial sanctions licence has effect on and after the relevant date as if it had been issued by the Treasury under regulation 19(1) (treasury licences).

(3) Any reference in an existing financial sanctions licence to the Terrorist Asset-Freezing etc. Act 2010 is to be treated on and after the relevant date as a reference to these Regulations.

(4) Any reference in an existing financial sanctions licence to a prohibition in the Terrorist Asset-Freezing etc. Act 2010, is to be treated on and after the relevant date as a reference to the corresponding prohibition in Part 3 (Finance).

(5) Paragraph (6) applies where—

- (a) an application for a licence, or for the variation of a licence, under the Terrorist Asset-Freezing etc. Act 2010, was made before the relevant date;
- (b) the application is for the authorisation of conduct which would (on and after the relevant date) be prohibited under Part 3, and
- (c) a decision to grant or refuse the application has not been made before that date.

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(6) The application is to be treated as an application for a licence, or for the variation of a licence (as the case may be), under regulation 19(1) (treasury licences).

(7) In this regulation, “the relevant date” means the date on which P is designated under regulation 5 for the purposes of regulations 11 to 15 (asset-freeze etc.).

#### Commencement Information

**I36** Reg. 35 in force at 31.12.2020 by [S.I. 2020/1416](#), [reg. 2\(2\)](#)

#### Marginal Citations

**M25** [2010 c.38](#).

#### Transitional provision: prior obligations

**36.** Where a person (“P”) was designated by the Treasury for the purposes of Part 1 of the Terrorist Asset-Freezing etc. Act 2010 immediately before the date on which P is designated under regulation 5 for the purposes of regulations 11 to 15 (asset-freeze etc.), the reference in regulation 17(5) (finance: exceptions from prohibitions) to the date on which a person became a designated person is a reference to the date on which the person was designated by the Treasury for the purposes of Part 1 of the Terrorist Asset-Freezing etc. Act 2010.

#### Commencement Information

**I37** Reg. 36 in force at 31.12.2020 by [S.I. 2020/1416](#), [reg. 2\(2\)](#)

*Mike Freer*  
*Craig Whittaker*  
Two of the Lords Commissioners of Her  
Majesty's Treasury

**Changes to legislation:** The Counter-Terrorism (Sanctions) (EU Exit) Regulations 2019 is up to date with all changes known to be in force on or before 19 December 2024. There are changes that may be brought into force at a future date. Changes that have been made appear in the content and are referenced with annotations. (See end of Document for details) View outstanding changes

## SCHEDULE

Regulation 7(3)

### Rules for interpretation of regulation 7(2)

#### Application of Schedule

1.—(1) The rules set out in the following paragraphs of this Schedule apply for the purpose of interpreting regulation 7(2).

(2) They also apply for the purpose of interpreting this Schedule.

#### Commencement Information

**I38** Sch. para. 1 in force at 7.12.2020 by [S.I. 2020/1416](#), [reg. 2\(1\)\(h\)](#)

#### Joint interests

2. If two or more persons each hold a share or right jointly, each of them is treated as holding that share or right.

#### Commencement Information

**I39** Sch. para. 2 in force at 7.12.2020 by [S.I. 2020/1416](#), [reg. 2\(1\)\(h\)](#)

#### Joint arrangements

3.—(1) If shares or rights held by a person and shares or rights held by another person are the subject of a joint arrangement between those persons, each of them is treated as holding the combined shares or rights of both of them.

(2) A “joint arrangement” is an arrangement between the holders of shares or rights that they will exercise all or substantially all the rights conferred by their respective shares or rights jointly in a way that is pre-determined by the arrangement.

(3) “Arrangement” has the meaning given by paragraph 12.

#### Commencement Information

**I40** Sch. para. 3 in force at 7.12.2020 by [S.I. 2020/1416](#), [reg. 2\(1\)\(h\)](#)

#### Calculating shareholdings

4.—(1) In relation to a person who has a share capital, a reference to holding “more than 50% of the shares” in that person is to holding shares comprised in the issued share capital of that person of a nominal value exceeding (in aggregate) 50% of that share capital.

(2) In relation to a person who does not have a share capital—

(a) a reference to holding shares in that person is to holding a right or rights to share in the capital or, as the case may be, profits of that person;

(b) a reference to holding “more than 50% of the shares” in that person is to holding a right or rights to share in more than 50% of the capital or, as the case may be, profits of that person.

**Changes to legislation:** The Counter-Terrorism (Sanctions) (EU Exit) Regulations 2019 is up to date with all changes known to be in force on or before 19 December 2024. There are changes that may be brought into force at a future date. Changes that have been made appear in the content and are referenced with annotations. (See end of Document for details) View outstanding changes

#### Commencement Information

**I41** Sch. para. 4 in force at 7.12.2020 by [S.I. 2020/1416](#), [reg. 2\(1\)\(h\)](#)

#### Voting rights

**5.—(1)** A reference to the voting rights in a person is to the rights conferred on shareholders in respect of their shares (or, in the case of a person not having a share capital, on members) to vote at general meetings of the person on all or substantially all matters.

**(2)** In relation to a person that does not have general meetings at which matters are decided by the exercise of voting rights—

- (a)** a reference to holding voting rights in the person is to be read as a reference to holding rights in relation to the person that are equivalent to those of a person entitled to exercise voting rights in a company;
- (b)** a reference to holding “more than 50% of the voting rights” in the person is to be read as a reference to holding the right under the constitution of the person to block changes to the overall policy of the person or to the terms of its constitution.

#### Commencement Information

**I42** Sch. para. 5 in force at 7.12.2020 by [S.I. 2020/1416](#), [reg. 2\(1\)\(h\)](#)

**6.** In applying regulation 7(2) and this Schedule, the voting rights in a person are to be reduced by any rights held by the person itself.

#### Commencement Information

**I43** Sch. para. 6 in force at 7.12.2020 by [S.I. 2020/1416](#), [reg. 2\(1\)\(h\)](#)

#### Rights to appoint or remove members of the board

**7.** A reference to the right to appoint or remove a majority of the board of directors of a person is to the right to appoint or remove directors holding a majority of the voting rights at meetings of the board on all or substantially all matters.

#### Commencement Information

**I44** Sch. para. 7 in force at 7.12.2020 by [S.I. 2020/1416](#), [reg. 2\(1\)\(h\)](#)

**8.** A reference to a board of directors, in the case of a person who does not have such a board, is to be read as a reference to the equivalent management body of that person.

#### Commencement Information

**I45** Sch. para. 8 in force at 7.12.2020 by [S.I. 2020/1416](#), [reg. 2\(1\)\(h\)](#)

**Changes to legislation:** The Counter-Terrorism (Sanctions) (EU Exit) Regulations 2019 is up to date with all changes known to be in force on or before 19 December 2024. There are changes that may be brought into force at a future date. Changes that have been made appear in the content and are referenced with annotations. (See end of Document for details) [View outstanding changes](#)

### Shares or rights held “indirectly”

**9.—(1)** A person holds a share “indirectly” if the person has a majority stake in another person and that other person—

- (a) holds the share in question, or
- (b) is part of a chain of persons—
  - (i) each of whom (other than the last) has a majority stake in the person immediately below it in the chain, and
  - (ii) the last of whom holds the share.

**(2)** A person holds a right “indirectly” if the person has a majority stake in another person and that other person—

- (a) holds that right, or
- (b) is part of a chain of persons—
  - (i) each of whom (other than the last) has a majority stake in the person immediately below it in the chain, and
  - (ii) the last of whom holds that right.

**(3)** For these purposes, a person (“A”) has a “majority stake” in another person (“B”) if—

- (a) A holds a majority of the voting rights in B,
- (b) A is a member of B and has the right to appoint or remove a majority of the board of directors of B,
- (c) A is a member of B and controls alone, pursuant to an agreement with other shareholders or members, a majority of the voting rights in B, or
- (d) A has the right to exercise, or actually exercises, dominant influence or control over B.

**(4)** In the application of this paragraph to the right to appoint or remove a majority of the board of directors, a person (“A”) is to be treated as having the right to appoint a director if—

- (a) any person's appointment as director follows necessarily from that person's appointment as director of A, or
- (b) the directorship is held by A itself.

#### Commencement Information

**I46** Sch. para. 9 in force at 7.12.2020 by [S.I. 2020/1416](#), [reg. 2\(1\)\(h\)](#)

### Shares held by nominees

**10.** A share held by a person as nominee for another is to be treated as held by the other (and not by the nominee).

#### Commencement Information

**I47** Sch. para. 10 in force at 7.12.2020 by [S.I. 2020/1416](#), [reg. 2\(1\)\(h\)](#)

### Rights treated as held by person who controls their exercise

**11.—(1)** Where a person controls a right, the right is to be treated as held by that person (and not by the person who in fact holds the right, unless that person also controls it).

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(2) A person “controls” a right if, by virtue of any arrangement between that person and others, the right is exercisable only—

- (a) by that person,
- (b) in accordance with that person's directions or instructions, or
- (c) with that person's consent or concurrence.

#### Commencement Information

**I48** Sch. para. 11 in force at 7.12.2020 by [S.I. 2020/1416](#), [reg. 2\(1\)\(h\)](#)

**12.** “Arrangement” includes—

- (a) any scheme, agreement or understanding, whether or not it is legally enforceable, and
- (b) any convention, custom or practice of any kind.

#### Commencement Information

**I49** Sch. para. 12 in force at 7.12.2020 by [S.I. 2020/1416](#), [reg. 2\(1\)\(h\)](#)

#### Rights exercisable only in certain circumstances etc.

**13.—**(1) Rights that are exercisable only in certain circumstances are to be taken into account only—

- (a) when the circumstances have arisen, and for so long as they continue to obtain, or
- (b) when the circumstances are within the control of the person having the rights.

(2) But rights that are exercisable by an administrator or by creditors while a person is subject to relevant insolvency proceedings are not to be taken into account while the person is subject to those proceedings.

(3) “Relevant insolvency proceedings” means—

- (a) administration within the meaning of the Insolvency Act 1986 <sup>M26</sup>
- (b) administration within the meaning of the Insolvency (Northern Ireland) Order 1989 <sup>M27</sup>, or
- (c) proceedings under the insolvency law of another country during which a person's assets and affairs are subject to the control or supervision of a third party or creditor.

(4) Rights that are normally exercisable but are temporarily incapable of exercise are to continue to be taken into account.

#### Commencement Information

**I50** Sch. para. 13 in force at 7.12.2020 by [S.I. 2020/1416](#), [reg. 2\(1\)\(h\)](#)

#### Marginal Citations

**M26** [1986 c.45.](#)

**M27** [S.I. 1989/2405 \(N.I. 19\).](#)



**Changes to legislation:** The Counter-Terrorism (Sanctions) (EU Exit) Regulations 2019 is up to date with all changes known to be in force on or before 19 December 2024. There are changes that may be brought into force at a future date. Changes that have been made appear in the content and are referenced with annotations. (See end of Document for details) View outstanding changes

## Rights attached to shares held by way of security

14. Rights attached to shares held by way of security provided by a person are to be treated for the purposes of this Schedule as held by that person—

- (a) where apart from the right to exercise them for the purpose of preserving the value of the security, or of realising it, the rights are exercisable only in accordance with that person's instructions, and
- (b) where the shares are held in connection with the granting of loans as part of normal business activities and apart from the right to exercise them for the purpose of preserving the value of the security, or of realising it, the rights are exercisable only in that person's interests.

### Commencement Information

**I51** Sch. para. 14 in force at 7.12.2020 by [S.I. 2020/1416](#), [reg. 2\(1\)\(h\)](#)

## EXPLANATORY NOTE

*(This note is not part of the Regulations)*

These Regulations are made under the Sanctions and Anti-Money Laundering Act 2018 (c.13) (“SAML A”) to establish a sanctions regime to further the prevention of terrorism in the United Kingdom and elsewhere, to protect the interests of national security in the United Kingdom and to implement the United Kingdom's international obligations under resolution 1373 (2001) adopted by the Security Council of the United Nations on 28 September 2001 (“resolution 1373”).

Following the repeal by section 59(1) of SAML A of Part 1 of the Terrorist Asset-Freezing etc. Act 2010 (“TAF A”), these Regulations will continue to implement the United Kingdom's obligations under resolution 1373.

The Regulations confer a power on the Treasury to designate persons who are, or have been, involved in terrorism. Designated persons will be subject to financial sanctions, including having their funds and economic resources frozen.

The Regulations provide for certain exceptions to this sanctions regime, in particular in relation to financial sanctions (for example to allow for frozen accounts to be credited with interest or other earnings) and also acts done for the purpose of national security or the prevention of serious crime. The Regulations confer powers on the Treasury to issue licences in respect of activities that would otherwise be prohibited under the financial sanctions imposed.

The Regulations make it a criminal offence to contravene, or circumvent, any of the prohibitions in these Regulations and prescribe the mode of trial and penalties that apply to such offences. The Regulations prescribe powers for the provision and sharing of information to enable the effective implementation and enforcement of the sanctions regime. The Regulations provide transitional provisions for the continuation of applicable exceptions and licences currently relied on under TAF A.

An Impact Assessment has not been produced for these Regulations, This instrument is intended to substantially deliver the same policy effects as the existing UK sanctions. An impact assessment was, however, produced for the primary legislation and can be found at <https://publications.parliament.uk/pa/bills/lbill/20172019/0069/sanctions-and-anti-money-laundering->

**Changes to legislation:** The Counter-Terrorism (Sanctions) (EU Exit) Regulations 2019 is up to date with all changes known to be in force on or before 19 December 2024. There are changes that may be brought into force at a future date. Changes that have been made appear in the content and are referenced with annotations. (See end of Document for details) [View outstanding changes](#)

IA.pdf. Copies may be obtained from Her Majesty's Treasury, Sanctions and Illicit Finance Team, International & EU Group, 1 Horse Guards Road, London, SW1A 2HQ.

**Changes to legislation:**

The Counter-Terrorism (Sanctions) (EU Exit) Regulations 2019 is up to date with all changes known to be in force on or before 19 December 2024. There are changes that may be brought into force at a future date. Changes that have been made appear in the content and are referenced with annotations.

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**Changes and effects yet to be applied to :**

- reg. 22(1)(j)-(m) inserted by [S.I. 2024/1157 reg. 10\(9\)\(a\)](#)
- reg. 22(3D)-(3K) inserted by [S.I. 2024/1157 reg. 10\(9\)\(b\)](#)
- reg. 22(5)(da) inserted by [S.I. 2024/1157 reg. 10\(9\)\(c\)](#)

**Changes and effects yet to be applied to the whole Instrument associated Parts and Chapters:**

Whole provisions yet to be inserted into this Instrument (including any effects on those provisions):

- reg. 22(1)(j)-(m) inserted by [S.I. 2024/1157 reg. 10\(9\)\(a\)](#)
- reg. 22(3D)-(3K) inserted by [S.I. 2024/1157 reg. 10\(9\)\(b\)](#)
- reg. 22(5)(da) inserted by [S.I. 2024/1157 reg. 10\(9\)\(c\)](#)